

**ELIZABETH II**



**1972 CHAPTER xxiv**

An Act to make provision for the conservancy of the navigation of the upper part of the river Avon in the counties of Warwick and Worcester; to confer powers upon the Upper Avon Navigation Trust Limited to regulate the use of such part of the river Avon by vessels; and for other purposes. [27th July 1972]

**W**HEREAS one William Sandys having undertaken at his own cost to make the river Avon and some other streams falling into the same passable for boats of reasonable burthen from the Severn near Tewkesbury through the counties of Gloucester Worcester and Warwick unto or near the city of Coventry and having been already at great charge in his endeavour to bring that work to perfection, by Letters Patent dated 9th March 1635 of his late Majesty King Charles I the said William Sandys was authorised and empowered to construct and maintain the navigation of the aforementioned part of the river Avon:

And whereas the said William Sandys and his successors as proprietors of the said navigation duly constructed the said navigation from the borough of Tewkesbury to or beyond the borough of Stratford-upon-Avon and thereafter maintained and took tolls for the use of locks, channels and other works in the said navigation:

And whereas by an Act intituled "An Act for the better regulating the navigation of the river Avon running through the counties of Warwick, Worcester and Gloucester and for



1751 c. 39.  
(24 Geo. 2.)

ascertaining the rates of water carriage upon the said river " (commonly called the River Avon Navigation Act 1751 and in this Act referred to as " the Act of 1751 ") the river Avon was declared for ever thereafter to be a free river navigable by the public on payment to the owners and proprietors of the said navigation of such rates of tonnage for all goods and merchandise carried thereon as were thereafter mentioned:

1894 c. cxviii.  
1969 c. lvi.

And whereas the Act of 1751 was amended by the Canal Tolls and Charges No. 3 (Aberdare, &c. Canals) Order Confirmation Act 1894 and was further amended by the Worcestershire County Council Act 1969:

And whereas the successors in title of the said William Sandys as proprietors of the said navigation divided the said navigation between them into two portions namely the Lower Avon Navigation from the borough of Tewkesbury upstream to the borough of Evesham and the Upper Avon Navigation from the borough of Evesham upstream to or beyond the borough of Stratford-upon-Avon:

And whereas the Lower Avon Navigation is managed, maintained and regulated as a public navigable waterway by the Lower Avon Navigation Trust Limited, whose registered office is situate at Gable End, The Holloway, Pershore, in the county of Worcester:

And whereas it is expedient for the Upper Avon Navigation Trust Limited to be empowered as in this Act provided to manage, maintain and regulate the said Upper Avon Navigation as a public navigable waterway and to make charges for the use thereof:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Upper Avon Navigation Act 1972.

Interpretation.

2. In this Act unless the context otherwise requires the following words shall have the meanings hereby respectively assigned to them:—

" Lower Avon Navigation " means the navigation of the river Avon from its junction with the river Severn at



the borough of Tewkesbury in the county of Gloucester upstream to the tail of Evesham Weir in the county of Worcester;

“navigation authority” has the meaning assigned to that expression by section 135 (1) of the Water Resources Act 1963;

1963 c. 38.

“Trust” means the Upper Avon Navigation Trust Limited, being a company limited by guarantee incorporated under the Companies Act 1948 and registered as a charity with the Charity Commission Number 244951, whose registered office is situate at 10 Guild Street, Stratford-upon-Avon in the county of Warwick and shall include any duly appointed successor or authorised assign of the said company;

1948 c. 38.

“Upper Avon Navigation” means the navigation of the river Avon from the tail of Evesham Weir in the county of Worcester upstream to the tail of Alveston sluice in the county of Warwick;

“vessel” includes any ship or boat of any kind used for any purpose and includes a houseboat (whether or not mobile), any raft, any inflatable boat, any hovercraft within the meaning of the Hovercraft Act 1968 and any object floated or propelled along or across water by any means for the purpose of moving it by water, and the provisions of the Act of 1751 shall be construed accordingly.

1968 c. 59.

3.—(1) The Trust shall be the navigation authority for the Upper Avon Navigation.

Trust to be navigation authority for

(2) The Trust shall by virtue of this Act become and be the owners and proprietors of the Upper Avon Navigation and shall as such have all the powers and be subject to all the provisions of the Act of 1751 as amended by this Act or any other statute and of all other enactments applicable thereto.

and owners and proprietors of Upper Avon Navigation.

4.—(1) The Trust shall be a qualified body as defined in and for all the purposes of section 113 of the Transport Act 1968.

Byelaws.

1968 c. 73.

(2) Without prejudice to the generality of the foregoing subsection, and subject to the provisions of Part I of Schedule 1 to this Act, the Trust may make byelaws in relation to the Upper Avon Navigation for any one or more of the purposes specified in Part II of the said schedule and the provisions of the said section 113 shall, with any necessary adaptations and modifications, apply in relation to any such byelaws in all respects as if the power to make such byelaws had been conferred on the Trust by an order made pursuant to the said section 113.



(3) Before submitting to the Secretary of State for confirmation any byelaws made by the Trust (whether made by virtue of subsection (1) or subsection (2) of this section and notwithstanding any provision in an order which may be made by the Secretary of State under the provisions of the said section 113) the Trust shall send a copy of the draft byelaws to the clerk of the county council of the administrative county of Warwick, the clerk of the county council of the administrative county of Worcester and the clerk of the Severn River Authority.

Power to  
charge tolls,  
etc.

1962 c. 46.

5.—(1) Without prejudice to the right of the Trust to levy charges under the Act of 1751 and subject to the provisions of this Act, the Trust shall have power to demand, take and recover tolls and charges for the use of any part of the Upper Avon Navigation by any vessel and shall be entitled to demand, take and recover charges for the provision of any services or facilities and the making use by any person of such services or facilities subject to the provisions (so far as applicable) of section 52 of the Transport Act 1962.

(2) The Trust shall and shall have power to register every vessel kept on or using the Upper Avon Navigation upon payment of the charges by this Act authorised to be made or, in the case of vessels by this Act exempted from charges, without payment.

(3) Notwithstanding anything contained in section 43 of the Transport Act 1962, the powers conferred by that section and any other power of charging or imposing terms and conditions upon persons navigating in any vessel so much of the river Avon as lies within the Upper Avon Navigation shall be exercised in a reasonable manner for the purpose of securing sufficient revenue for the maintenance and improvement of the Upper Avon Navigation (including proper provision for reserves and contingent liabilities) the discharge of the operating expenses of the Trust and the proper management and control of the Upper Avon Navigation in the public interest.

Rights of  
owner  
occupiers.

6.—(1) In the Act of 1751, in the proviso of which the marginal note is "Particular exemptions to occupiers of lands near the river", the words "That all Owners of and all and every Person or Persons occupying any Lands or Tenements adjacent or near unto the said River shall have free Liberty to keep and use any Boats or Vessels upon the said River for Pleasure" shall cease to have effect so far as they relate to the Upper Avon Navigation.

(2) Notwithstanding the provisions of the foregoing subsection, any person who is the owner and occupier of any premises with a frontage to any part of the river Avon within the Upper Avon



Navigation who is also owner in fee simple of the bed of the river Avon adjacent thereto shall be entitled to keep and use one vessel of a length not exceeding 15 feet overall for his personal use free of charge, subject to the byelaws and regulations made from time to time by the Trust.

(3) Nothing in the foregoing provisions of this section shall affect any liability to pay to the Trust such charges or tolls as they can lawfully demand for the passage of any vessel through any lock.

7.—(1) Nothing in this Act shall affect any power of Her Majesty, the court, the Charity Commissioners for England and Wales or any other person to alter the trusts of any charity.

Powers and status of Trust as a charity.

(2) The right, title and interest of the Upper Avon Navigation Trust Limited in the Upper Avon Navigation shall be transmissible, but only in accordance with the requirements of the law for the transmission of land held on charitable trusts.

8. The Act of 1751 shall continue to apply to the Upper Avon Navigation subject to the amendments set out in this Act and in Schedule 2 to this Act.

Application of Act of 1751.

9. All the Queen's liege people whatsoever shall have free liberty at all reasonable times and for all reasonable purposes in boats, barges and other vessels suitable for use upon the river to pass and repass up and down the said river and to pass through and use the locks and lock cuts (including those newly constructed prior to the passing of this Act) and where appropriate to pass over and use the rollers provided for small vessels, subject always to the provisions of this Act, to the rules, regulations and byelaws of the Trust for the time being in force (including in particular the due observance of any reasonable restrictions on speed of navigation and the use of the river, lock cuts, locks and other works in the interests of safety and the convenience of other users and persons nearby and good navigable river management generally) paying therefor the reasonable charges, tolls, fees and period permit or licence charges demanded and recoverable by the Trust and holding such receipt, permit or licence issued by the Trust as may be prescribed by the Trust from time to time, including a free permit or licence or permit or licence issued free of charge for limited use on prescribed parts of the river to those persons (if any) entitled thereto.

Right of navigation.

10. For removal of doubt, nothing enacted by section 17 of the Worcestershire County Council Act 1969 shall apply to any part of the river Avon which lies within the Upper Avon Navigation but outside the county of Worcester.

Byelaws affecting the river Avon. 1969 c. lvi.



Savings.  
1959 c. 25.

**11.** Section 307 (Saving for works etc. of dock, harbour and canal undertakers) of the Highways Act 1959 shall apply to the Upper Avon Navigation as if the Upper Avon Navigation were a dock, harbour, river, canal, lock or towing path within the meaning of that section and as if the Trust were the dock, harbour or canal undertakers concerned within the meaning of that section.

For protection  
of Severn  
River  
Authority.

**12.** For the protection of the Severn River Authority (in this section referred to as "the river authority") the following provisions shall, unless otherwise agreed in writing between the Trust and the river authority, apply and have effect:—

1930 c. 44.

- (1) For the purposes of the Land Drainage Acts 1930 and 1961 (and of any amendment, application or replacement of those Acts) (other than section 42 of the Land Drainage Act 1930) in their application to the area of the river authority, or of any byelaw, rule, regulation or other instrument of the river authority having effect under those Acts, the Trust shall not be deemed to be a navigation authority; nor shall any byelaw made by the Trust under section 4 (Byelaws) of this Act or pursuant to an order made under section 113 of the Transport Act 1968 apply to, or to any act done by, the river authority in exercise of any statutory or other duty or in the lawful exercise of any powers or exclude or override any byelaw of the river authority:

1968 c. 73.

- (2) Nothing in section 5 (Power to charge tolls, etc.) of this Act shall empower the Trust to demand, take and recover any toll or charge as respects any vessel belonging to or employed in the service of the river authority:
- (3) (a) Before in any case carrying out any works (being new works or works of improvement or maintenance to any existing work) pursuant to the powers of section 34 of the Land Drainage Act 1930 being works the carrying out of which, whether directly or indirectly, interferes or will interfere with, or with the use of the weirs, locks and lock cuttings of, the Trust in the Upper Avon Navigation, the river authority shall give to the Trust prior written notice of their intention in that behalf and of the work proposed unless the river authority consider the case to be one of emergency wherein prior written notice is not reasonably practicable, in which case the river authority shall inform the Trust in writing as soon as may be after the works of construction, improvement or maintenance have been carried out;



- (b) If, within a period of twenty-eight days after the giving of prior written notice to them under sub-paragraph (a) of this paragraph, the Trust give written notice to the river authority that the Trust consider that the work of the authority unreasonably interferes or will interfere as aforesaid, or that the work should for the reasonable avoidance or mitigation of any such interference be undertaken only subject to such conditions as are specified by the Trust in the notice, then the river authority shall not undertake the work or, as the case may be, shall undertake it only in compliance with such conditions:

Provided that if the river authority serve counter-notice on the Trust that the river authority dispute the reasonableness of the notice served on them under this paragraph, the dispute shall be referred to a single arbitrator agreed between the parties or, failing such agreement, to be appointed by the President of the Institution of Civil Engineers on the application of either party.

13.—(1) Nothing shall be done pursuant to this Act or to any byelaw made under or by virtue of this Act so as to prejudice the exercise of any power of a highway authority to enter upon, use or interfere with the Upper Avon Navigation for the purpose of inspecting, maintaining, repairing, improving, widening or reconstructing any bridge, highway or public quay to which this section applies. For protection of highway authorities.

(2) Nothing in section 5 (Power to charge tolls, etc.) of this Act shall empower the Trust to demand, take and recover any toll or charge as respects any vessel belonging to or employed in the service of a highway authority.

(3) This section applies to—

(i) any bridge over the Upper Avon Navigation being—

(a) a highway maintainable at the public expense; or

(b) a bridge maintained by the highway authority in pursuance of any agreement;

and includes the highway carried by that bridge;

(ii) any highway abutting on, adjacent to or contiguous with the Upper Avon Navigation and any retaining wall between the Upper Avon Navigation and any such highway; and

(iii) any public quay situated in or by the Upper Avon Navigation.

(4) In this section expressions to which meanings are assigned by the Highways Act 1959 have the same respective meanings. 1959 c. 25.

14. All costs, charges and expenses of and incidental to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Trust. Costs of Act.



## SCHEDULES

## Section 4.

## SCHEDULE 1

## PART I

## PROVISIONS WITH RESPECT TO BYELAWS

*Procedure before confirmation of byelaws*

1.—(1) At least 28 days before application is made to the Secretary of State by the Trust for confirmation of any byelaw the Trust shall give notice of their intention to apply for such confirmation in the London Gazette and in one or more local newspapers circulating in the area or areas through which the Upper Avon Navigation or such part or parts thereof as will be affected by the byelaw is situated.

(2) The said notice shall state the place or places at which, and the time during which, a copy of the byelaw shall be available for public inspection and such time shall not be shorter than the period during which representations may be made as hereinafter provided.

(3) Any person who may be affected by the byelaw shall be entitled to make representations in writing to the Secretary of State at the address stated in the said notice and within a period (not less than 28 days from the date of the first publication of the said notice in the local paper under paragraph (1) above) specified in the said notice, such representations stating, in cases where they amount to an objection to the byelaw, the grounds of the objection.

*Confirmation of byelaws by the Secretary of State*

2.—(1) The Secretary of State may confirm any byelaw submitted to him for confirmation either with or without modification, or may refuse to confirm such byelaw, but where the Secretary of State proposes to confirm a byelaw with a modification which appears to him to affect the substance of the byelaw he shall not do so without taking steps to inform the Trust, any persons who have made representations in relation to the byelaw and any other persons appearing to him to be likely to be affected by the modification, of his proposed modification, and without giving them an opportunity to make representations thereon to him.

(2) A byelaw confirmed by the Secretary of State shall come into operation on such date as may be fixed by the Secretary of State when confirming the byelaw or, if no such date is fixed, at the expiration of 28 days from the date of confirmation.

*Procedure after confirmation*

3.—(1) As soon as may be after confirmation, the Trust shall publish notice of the confirmation of the byelaw in the manner indicated in paragraph 1 (1) of this Schedule for the publication of the notice mentioned in that paragraph.

(2) The Trust shall keep a printed copy of the byelaw, as confirmed, at the address specified in the said notice of confirmation or at such other address as is for the time being the head office of the Trust and such copy shall be open to public inspection at all reasonable hours so long as the byelaw remains in force.



(3) The Trust shall also display copies of the byelaw on notice boards at reasonable intervals along the Upper Avon Navigation, or the part or parts thereof affected by the byelaw, and at or near to any locks thereon and shall maintain such display so long as the byelaw remains in force.

SCH. 1  
—cont.

## PART II

### PURPOSES FOR WHICH BYELAWS MAY BE MADE

(In this Part of this Schedule “the Navigation” means the Upper Avon Navigation as defined in section 2 of the foregoing Act.)

(1) For regulating the use of the Navigation and the conduct of all persons (including the officers and servants of the Trust) who shall be on the Navigation.

(2) For keeping a register of vessels using the Navigation and for prohibiting the use of the Navigation by unregistered vessels.

(3) For determining the condition of vessels that may be used on the Navigation or on specified parts thereof and the manner in which such vessels may be navigated and used.

(4) For regulating the markings of vessels using the Navigation.

(5) For regulating the loading, discharging and mooring of vessels on the Navigation.

(6) For preventing damage or injury to the Navigation or to any persons, vessels or goods thereon and interference with any work therein and the removal or alteration of any work or thing set up by the Trust or with their consent in connection with the Navigation.

(7) For operating the locks on the Navigation.

(8) For preventing obstructions in the Navigation.

(9) For preventing or regulating bathing in the Navigation.

(10) For regulating the speed at which vessels may navigate on the Navigation.

## SCHEDULE 2

### PROVISIONS OF RIVER AVON NAVIGATION ACT 1751 REPEALED

1751 c. 39.  
(24 Geo. 2.)

The proviso of which the marginal note is “Exceptions from the Duties”;

The section of which the marginal note is “None to be charged with Tonnage for Goods for which they have been exempted”; and

The section of which the marginal note is “Rates to be paid by vessels passing through the sluice at Tewkesbury into the Severn And through the sluice at Evesham and at every Weir”.

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# Upper Avon Navigation Act 1972

CHAPTER xxiv

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